



CHAPTER ix.

An Act to authorise the Ascot District Gas and Electricity Company to raise additional capital and for other purposes. [16th June 1926.] A.D. 1926.

WHEREAS the Ascot District Gas and Electricity Company (hereinafter called "the Company") were incorporated by the Ascot District Gas Act 1882 (hereinafter called "the Act of 1882") and by that Act were authorised to supply gas in the parishes of Sunninghill with Ascot Sunningdale Easthampstead Warfield Binfield Winkfield Lawrence Waltham Bracknell Virginia Water Sandhurst and part of the parish of Bray all in the county of Berks and in the parishes of Windlesham Bisley Ash and Normandy all in the county of Surrey :

And whereas by the Ascot District Gas and Electricity Act 1906 (hereinafter called "the Act of 1906") the limits for the supply of gas were extended so as to include the parish of Chobham in the county of Surrey and the Company were authorised by the said Act to supply electricity in the parishes of Sunningdale Sunninghill Easthampstead Warfield Binfield Winkfield and Waltham St. Lawrence in the county of Berks and the parishes of Bisley Chobham Windlesham and Bagshot in the county of Surrey :

And whereas further powers were conferred upon the Company by the Ascot District Gas and Electricity Act 1915 (hereinafter called "the Act of 1915") :

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And whereas the following is a statement of the share capital and loan capital of the Company :

SHARE CAPITAL.

Act of Parliament authorising share capital.	Description of shares.	Maximum dividend authorised.	Amount authorised.
Act of 1882	A. Original shares - - -	% 10	£ 60,000
Act of 1906	B. Additional ordinary shares - - -	7	30,000
Act of 1915	D. Additional preference shares - - -	6	50,000
			£140,000

The whole of which has been issued and fully paid up :

LOAN CAPITAL.

Act of Parliament authorising borrowing.	Description.	Rate of interest per cent.	Amount authorised.
Act of 1882	Perpetual debenture stock -	% 4 and 4½	£ 15,000
Act of 1906	- - - - -	4½	15,000
Act of 1915	Terminable debenture stock -	8	14,000
	Mortgage - - - - -	5	26,000
			£70,000

The whole of which has been borrowed :

And whereas the demand for gas and electricity within the Company's area of supply has increased and is increasing and with a view to meeting such demand and for other the purposes of this Act and the general purposes of the Company it is expedient that the Company be authorised to raise additional capital as by this Act provided :

And whereas it is expedient that the other provisions contained in this Act should be made : A.D. 1926.

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Ascot District Gas and Electricity Act 1926. Short title.

2. The following parts of Acts are incorporated with this Act (namely) :— Incorporation of general Acts.

The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) :

Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

3. In this Act the several words and expressions to which meanings are assigned by the Acts partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And the expressions following have the following meanings (that is to say) :— Interpretation.

The expression "the Company" means the Ascot District Gas and Electricity Company;

"The Act of 1882" means the Ascot District Gas Act 1882;

"The Act of 1915" means the Ascot District Gas and Electricity Act 1915;

"The undertaking" means the undertaking of the Company;

"The limits of supply" means the limits within which the Company are authorised to supply gas or electricity as the case may require;

"The directors" means the directors of the Company.

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Additional
capital.

4. The Company may from time to time raise additional capital not exceeding in the whole sixty thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of sixty thousand pounds.

Incidents of
new shares
or stock.

5. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital. The capital in new shares or stock so created shall form part of the capital of the Company.

Dividends
on new
shares or
stock.

6. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on such new shares or stock or to the whole amount of such shares or stock as the case may be.

Restrictions,
as to votes in
respect of pre-
ference shares
or stock.

7. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Profits of
Company on
additional
capital
limited.

8. The Company shall not in any year pay out of their profits any larger dividend on the additional capital to be raised under the powers of this Act than seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as new ordinary capital and six pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as new preference capital.

9.—(1) All shares or stock created under the powers of this Act shall be issued in accordance with the provisions of this section.

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New shares
or stock
to be sold
by auction
or tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine
Provided as follows :—

- (a) Notice of the intended sale shall be given in writing to the clerk of every district council whose district or any part of whose district is within the limits of supply and to the secretary of the London Stock Exchange at least fourteen days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply :
- (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares of the Company in accordance with the provisions of

A.D. 1926. sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas or electricity supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock.

Power to
borrow.

10. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-half of the amount of the additional capital which at the time of borrowing has been raised under the powers of this Act but no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the amounts payable in respect of such capital at the time issued together with the premiums (if any) realised on the sale thereof have been fully paid up.

Debenture
stock.

11. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and section 15 of the Act of 1882 Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

12. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but subject as hereinafter in this section provided nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company:

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Existing
mortgages
to have
priority.

Provided that so long as the Lords Commissioners of His Majesty's Treasury (hereinafter referred to as "the Treasury") remain under any liability in connection with their guarantee for a loan to the Company of a sum of twenty-six thousand pounds under the Trade Facilities Act 1921 and amending legislation pursuant to an agreement dated the eighteenth day of May one thousand nine hundred and twenty-five and made between the Company of the one part and the Treasury of the other part or any moneys due to the Treasury thereunder remain unpaid the interest on any debenture stock issued and the principal moneys and interest secured by all mortgages granted by virtue of this Act shall rank after the interest on any debenture stock issued and after the principal moneys and interest secured by any mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof.

13. Section 44 (For appointment of receiver) of the Act of 1915 is by this Act repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provision prior to the passing of this Act and in lieu thereof the mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

For appoint-
ment of
receiver.

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Issue of
redeemable
preference
capital and
debenture
stock.

14.—(1) The Company may create and issue all or any of the preference shares or stock and all or any debenture stock which they are by this Act authorised to create and issue so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed by a special meeting convened for the purpose.

(2) If it is so provided in the resolution the Company may—

(a) call in and pay off the shares or stock or any part thereof at any time before the fixed date of redemption; and

(b) redeem the shares or stock or any part thereof either by paying off the same or by issuing to any stockholder subject to his consent other shares or stock in substitution therefor and may for the purpose of providing money for paying off the shares or stock or of providing substituted shares or stock create and issue new shares or stock (either redeemable or irredeemable) or re-issue shares or stock originally created and issued under this section. Provided that the creation and re-issue for the purpose of any particular class of shares or stock does not make the total nominal amount of such shares or stock exceed the amount of that class of shares or stock which the Company are for the time being authorised to create save so far as such creation and issue is for the purpose of paying off shares or stock created and issued under the provisions of this section or of providing shares or stock substituted for the same thereunder.

(3) The Company shall not redeem out of revenue any preference shares or stock or debenture stock created under this section.

Priority of
mortgages
and debenture
stock
over other
debts.

15. All money to be raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any

claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

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16. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in
case of
persons not
sui juris.

17. All money raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of any shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

Application
of moneys.

18.—(1) The directors may appoint one or two of their body to be managing director or managing directors of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places.

As to
appoint-
ment of
managing
director.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall *ipso facto* immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

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Directors may
determine re-
muneration of
secretary.

19. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary of the Company.

Power to
directors
to make
donations
subscrip-
tions &c.

20. The directors may subscribe or make donations to infirmaries or hospitals and to convalescent homes and similar institutions and to any industrial exhibitions relating to any of the objects of the Company and to benevolent and sick funds of the employees of the Company and may for any of these purposes apply the revenues of the Company.

Provision
of valve
where high
pressure
air is used.

21.—(1) Every consumer of gas supplied by the Company who uses air at high pressure for or in connection with the consumption of such gas (in this section referred to as "high pressure air") shall if required to do so by the Company provide and fix in a suitable position and use an efficient valve or other appliance for preventing the admission of such air into the service pipe or any main through which such gas is supplied and shall at all times at his own expense keep in proper order and repair any such valve or other appliance as aforesaid which shall have been provided and fixed whether upon such requirement or otherwise.

(2) It shall not be lawful for any person at any time after the passing of this Act to commence to use high pressure air unless and until he shall have given to the Company not less than fourteen days' previous notice in writing of his intention to do so.

(3) Every person who at the date of the receipt by him of any such demand note as is referred to in paragraph (a) of subsection (5) of this section is using high pressure air shall within one month after that date give to the Company notice in writing of such use and if within one month after the giving of such notice the Company require the consumer giving the same to provide and fix such a valve or other appliance as aforesaid it shall not be lawful for him after the expiration of fourteen days from the receipt of the requirement to continue to use high pressure air unless before such expiration he shall have complied with the requirement.

(4) If any consumer shall fail to comply with any requirement of the Company or any obligation under this section the Company may cease to supply gas to

him and shall not be under any obligation to resume such supply until the default shall have been remedied to their satisfaction. A.D. 1926.
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(5) The Company shall give notice of the effect of the foregoing provisions of this section—

(a) (In the case of all persons who at the date of the passing of this Act are consumers of gas supplied by the Company) on the demand notes for gas charges payable to the Company issued next after that date; and

(b) (In the case of any person becoming after the passing of this Act a consumer of gas supplied by the Company) on the first of such demand notes delivered to such person after he shall have become a consumer.

(6) The Company shall have access at all reasonable times to all premises supplied by them with gas in or upon which high pressure air is used or the Company have reason to believe that high pressure air is or may at the time be used in order to ascertain whether any such valve or appliance as aforesaid is efficient or is in proper order and repair or whether such a valve or appliance is provided and fixed where necessary.

(7) The Company shall be at liberty to take off remove test inspect and replace any such valve or other appliance as aforesaid such taking off removing testing inspecting and replacing to be done at the expense of the Company if the valve or other appliance be found in proper order but otherwise at the expense of the consumer.

22. In the event of a meter of a construction and pattern approved by the Minister of Transport used by any consumer of electricity being proved to register erroneously such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be paid to or the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as charges for electricity are recoverable by the Company.

Period of
error in
defective
electricity
meters.

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Recovery of
demands.

23. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Dwelling-
houses for
employees
offices &c.

24. The Company may purchase or take on lease houses and cottages for any of their employees and offices and showrooms for the purposes of the undertaking and may erect fit up maintain and let any such building upon any lands for the time being belonging or leased to the Company.

Recovery of
penalties
&c.

25. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Costs of Act.

26. All the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

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